

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #04	CCRB Case #: 201702812	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 04/10/2017 4:50 PM	Location of Incident: In front of § 87(2)(b) and 61st Precinct Stationhouse	18 Mo. SOL 10/10/2018	Precinct: 61		
Date/Time CV Reported Mon, 04/10/2017 6:00 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Tue, 04/11/2017 2:37 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM James Sledge	06190	959251	061 PCT
2. POF Bridget Hearn	07627	953957	061 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Kenneth Vetter	02743	946367	061 PCT
2. SGT Lee Helton	4956	944642	061 PCT
3. POM Agron Pervizi	31882	957029	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM James Sledge	Discourtesy: In front of § 87(2)(b), Police Officer James Sledge acted discourteously toward § 87(2)(b)	A . Exonerated
B . POM James Sledge	Force: In front of § 87(2)(b), Police Officer James Sledge used physical force against § 87(2)(b)	B . Exonerated
C . POM James Sledge	Off. Language: In front of § 87(2)(b), Police Officer James Sledge made remarks to § 87(2)(b) based upon religion.	C . Unfounded
D . POF Bridget Hearn	Off. Language: At the 61st Precinct stationhouse, Police Officer Bridget Hearn made remarks to § 87(2)(b) based upon religion.	D . Unfounded
E . POF Bridget Hearn	Discourtesy: At the 61st Precinct stationhouse, Police Officer Bridget Hearn spoke discourteously to § 87(2)(b)	E . Unsubstantiated

Case Summary

On April 10, 2017, § 87(2)(b) filed this complaint with the 61st Street Precinct stationhouse (BR01) and IAB (BR05). On April 11, 2017, the case was received at the CCRB.

On April 10, 2017, at approximately 4:50 p.m., § 87(2)(b) was sitting in a parked vehicle in front of § 87(2)(b) in Brooklyn, when he was approached by PO James Sledge and PO Bridget Hearn of the 61st Street Precinct. PO Sledge requested § 87(2)(b)'s license and registration. § 87(2)(b) asked PO Sledge to give him a minute because he was about to receive an important call. PO Sledge grabbed the cell phone from § 87(2)(b)'s hands and gave it to PO Hearn, who then placed it on § 87(2)(b)'s dashboard (**Allegation A**).

PO Sledge then grabbed both § 87(2)(b)'s hands and attempted to pull him out of the vehicle through the window, but was unable to because his seat belt was still fastened (**Allegation B**). PO Sledge as a result scratched § 87(2)(b)'s hands. PO Sledge said to him, "You Jews are always getting away with a lot of illegal stuff..." (**Allegation C**).

PO Sledge issued § 87(2)(b) a summons for driving while using a handheld device (BR04). The officers then left the scene.

Approximately 10 minutes later, § 87(2)(b) went to the 61st Street Precinct stationhouse to file a complaint. He saw PO Hearn, who said to him, "Fucking Jews, always getting away with everything ... You are lucky we did not have a fucking dash camera or we would have locked your ass up" (**Allegation D and E**).

The investigation was unable to obtain video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of June 29, 2017, no Notice of Claim has been filed (BR13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (BR15).
- PO Sledge has been a member of service for one year and currently has another CCRB complaint pending investigation. § 87(2)(g)
- PO Hearn has been a member of service for four years and has two allegations against her stemming from two complaints, one of which was not substantiated and the other of which is pending investigation. § 87(2)(g)

Potential Issues

- § 87(2)(b) listed § 87(2)(b) and § 87(2)(b) as witnesses to this incident. On May 5, 2017, § 87(2)(b) (BR08) was contacted, but denied witnessing § 87(2)(b)'s interaction with PO Sledge and PO Hearn. Between May 4, 2017, and June 13, 2017, five calls and two letters were sent to § 87(2)(b). To date, she has not responded to these contact attempts and as such no statement was obtained from her.
- § 87(2)(b) in his phone statement (BR02) said he had a cell phone recording of the incident. However, during his in-person statement, § 87(2)(b) showed the investigation a 12-second video of the incident (BR07), which did not depict any

interaction between police officers and civilians. In the video, a female wearing a red dress can be seen filming the incident on her cell phone. § 87(2)(b) initially said he knew this female, but later said he did not know her or have her contact information. Absent any means by which to identify this individual, the investigation was unable to obtain any video recorded by her. On April 27, 2017, the investigation also canvassed the location for video with negative results. The investigation was therefore unable to obtain relevant video footage of this incident.

Findings and Recommendations

Allegations not pleaded

§ 87(2)(g)



Allegation A – Discourtesy: In front of § 87(2)(b) Police Officer James Sledge acted discourteously toward § 87(2)(b)

It is undisputed that PO Sledge took § 87(2)(b)'s phone from his hand, although there are differing accounts as to how and why PO Sledge took the phone from § 87(2)(b)'s hand. § 87(2)(b) (BR06) said that on April 10, 2017, at approximately 4:50 p.m., he drove his vehicle out of a driveway and parked it in front of his synagogue, located at § 87(2)(b) in Brooklyn, where he had been volunteering the entire day. The driveway was approximately 50 feet away from the synagogue. § 87(2)(b) stayed in his parked vehicle for approximately two minutes, at which point he saw a marked vehicle pull up behind him.

PO James Sledge and PO Bridget Hearn exited the marked vehicle and approached § 87(2)(b) from the driver and passenger side respectively. PO Sledge knocked on § 87(2)(b)'s driver window, which was rolled up, and asked him to roll it down. § 87(2)(b) rolled the window down and PO Sledge requested his license and registration. § 87(2)(b) asked PO Sledge why, and PO Sledge informed him that he had driven while using his cell phone. § 87(2)(b) denied this and told PO Sledge that he might have mistaken him for someone else. § 87(2)(b) initially said he was speaking on his cell phone, but changed his account and said he only held his cell phone in his hands and was not using it. (In filing this complaint at the 61st Precinct stationhouse (BR01), and in his IAB (BR05) and CCRB phone (BR02) statements, § 87(2)(b) admitted that he was speaking on his cell phone when the officers approached him).

PO Sledge again requested § 87(2)(b)'s license and registration, but § 87(2)(b) told him to "give him a second" because he was about to make an important call. PO Sledge became angry that § 87(2)(b) told him to wait. He reached through the window and snatched the cell phone out of § 87(2)(b)'s right hand. (In his CCRB phone statement (BR02), § 87(2)(b) said he tried to roll his windows back up, but PO Sledge blocked the window with one hand, and used the other hand to snatch the phone out of § 87(2)(b)'s hand). PO Sledge then gave the cell phone to PO Hearn, who placed it on § 87(2)(b)'s dashboard. § 87(2)(b) told PO Sledge he did not have to be hostile, and then gave his driver's license and registration to PO Hearn.

PO Sledge (BR10) said that he and PO Hearn were stopped at a traffic light on § 87(2)(b) in Brooklyn when he observed § 87(2)(b) talking on his cell phone as he drove. § 87(2)(b) held the phone approximately 10 inches away from his face and appeared to be speaking. PO Sledge turned on his turret lights and followed § 87(2)(b). § 87(2)(b) made a left turn on § 87(2)(b) and stopped his vehicle in front of a synagogue. PO Sledge pulled over behind § 87(2)(b)'s vehicle. He and PO Hearn exited the vehicle and approached the driver and passenger side of § 87(2)(b)'s vehicle respectively. The vehicle's windows were rolled up and § 87(2)(b) still had his phone in his hands and was speaking. PO Sledge knocked on the window and instructed § 87(2)(b) to roll the window down. § 87(2)(b) raised his index finger and hand motioned to PO Sledge to "give him a moment." PO Sledge knocked on the window again and § 87(2)(b) responded with the same hand motion.

Approximately two minutes later, § 87(2)(b) rolled down the driver side window, and PO Sledge requested his license and registration. § 87(2)(b) asked why he was stopped, and PO Sledge told him because he drove while using his cell phone. PO Hearn moved to the driver side and stood next to PO Sledge. PO Sledge again asked § 87(2)(b) for his license and vehicle documents. § 87(2)(b) was non-compliant and told the officers that he was on the phone.

PO Sledge did not recall the number of times he requested § 87(2)(b)'s license and registration, but said it was more than three times. Each time, § 87(2)(b) was non-compliant and kept saying that he worked for and knew superiors within the police department. As a result of § 87(2)(b)'s non-compliance, PO Hearn radioed for backup.

§ 87(2)(b) then told PO Sledge he was going to call a sergeant of his so the sergeant could speak with PO Sledge. § 87(2)(b) rolled up his window, but PO Sledge prevented him by placing his hand on the window. PO Sledge reached into the vehicle, held the top portion of the phone, and pulled it out of § 87(2)(b)'s hands. PO Sledge then placed the phone on § 87(2)(b)'s dashboard. PO Sledge did not come into physical contact with any part of § 87(2)(b).

§ 87(2)(b)'s body. PO Sledge felt it was necessary to take the phone from § 87(2)(b)'s hands because § 87(2)(b) was not compliant with his instructions and had also attempted to roll up the window so he could speak on the phone.

PO Hearn (BR11) § 87(2)(g) adding that § 87(2)(b) was rude and highly uncooperative. She said § 87(2)(b) told them he was a confidential informant for the police department and asked the officers if "they had nothing better to do than stop him." He then said he was going to call his "handler," but PO Sledge gently took the phone away from him and placed it on his dashboard.

Patrol Guide Procedure 203-09 (BR16) states that police officers must be courteous and respectful in their contact with the public.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Exonerated**.

Allegation B – Force: In front of § 87(2)(b) Police Officer James Sledge used physical force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) (BR06) said after PO Sledge took his cell phone and gave it to PO Hearn, PO Sledge asked him to exit the vehicle, but he refused and said he did nothing wrong. PO Sledge then grabbed both his hands and attempted to pull him out of the vehicle through the driver window, but was unable to because § 87(2)(b)'s seat belt was still fastened. PO Sledge as a result scratched § 87(2)(b)'s hands, causing minor bruising. § 87(2)(b) did not receive medical treatment or otherwise document these injuries.

Later in his sworn CCRB statement, § 87(2)(b) § 87(2)(g) said PO Sledge never instructed him to exit his vehicle. Rather, PO Sledge after snatching the phone and giving it to PO Hearn walked to the back of the vehicle and "cooled off" because PO Hearn told him he was too aggressive with § 87(2)(b). PO Sledge returned a few minutes later and again requested § 87(2)(b)'s license and registration. § 87(2)(b) told PO Sledge that his license was in his jacket, which was in the backseat. § 87(2)(b) turned towards the backseat to grab the jacket, but PO Sledge grabbed both his arms and began to pull him out through the window. PO Sledge was unable to do so because his seat belt was fastened. PO Sledge then put his head through the vehicle and tried to pull § 87(2)(b) out of the vehicle from his waist and stomach area, but again was unable to because of the fastened seat belt.

PO Sledge (BR10) denied instructing § 87(2)(b) to get out of the vehicle. He said after placing the phone on the dashboard, he opened the driver's door and requested § 87(2)(b)'s license and registration, which § 87(2)(b) provided. PO Sledge then returned to his vehicle to write the summons. PO Sledge denied pulling or otherwise coming into any physical contact with § 87(2)(b). He said the closest contact he had with § 87(2)(b) was

when he took the phone out of § 87(2)(b)'s hand, and § 87(2)(b) never complained of any injuries.

PO Hearn (BR11) § 87(2)(g) said PO Sledge never grabbed or came into physical contact with § 87(2)(b).

A Threat Resistance and Injury (TRI) report (BR09) was prepared by Sgt. Kenneth Vetter after § 87(2)(b) complained at the 61st Street Precinct stationhouse. In the report, the hand § 87(2)(b) said PO Sledge hit and scratched was photographed, and it showed no visible injuries or bruises. The report also reflects that PO Sledge denied using any force whatsoever against § 87(2)(b).

According to Maryland v. Wilson, 519 U.S. 408 (1997) (BR18), a police officer may as a matter of course order the occupant of a lawfully stopped vehicle to exit the vehicle.

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegation B** be closed as **Exonerated**.

Allegation C – Offensive Language: In front of § 87(2)(b) Police Officer James Sledge made remarks to § 87(2)(b) based upon religion.

Allegation D – Offensive Language: At the 61st Precinct stationhouse, Police Officer Bridget Hearn made remarks to § 87(2)(b) based upon religion.

Allegation E – Discourtesy: At the 61st Precinct stationhouse, Police Officer Bridget Hearn spoke discourteously to § 87(2)(b)

§ 87(2)(b) (BR06) said after PO Sledge's failed attempt to remove him from the vehicle, PO Sledge called for backup. Approximately five minutes later, Sgt. Lee Helton and six other officers arrived at the scene. The arriving officers surrounded § 87(2)(b)'s vehicle, but they did not interact with him. Sgt. Helton instructed PO Sledge to issue § 87(2)(b) a summons. PO Sledge then handed § 87(2)(b) a VTL summons (BR04) and said to him, "You Jews are always getting away with a lot of illegal stuff that happens in Brooklyn with pistol gun permits." § 87(2)(b) in his CCRB phone statement (BR02-03) reported PO Sledge's phrasing as, "You Jews think you can get away with everything. You are going to learn today... You Jews are going to pay and will not get away this time"). All the officers then returned to their vehicles and left the scene.

Approximately 10 minutes later, § 87(2)(b) went to the 61st Street stationhouse to file a complaint. Inside the stationhouse, he saw PO Sledge and PO Hearn. PO Hearn approached him

at the waiting area and said to him, “Fucking Jews always getting away with everything....You are lucky we did not have a fucking dash camera or we would have locked your ass up.” PO Hearn then walked away and had no further interaction with § 87(2)(b).

§ 87(2)(b) however, did not make any of these allegations in filing this complaint at the stationhouse or in his statement to IAB. He told IAB (BR05) that the officers mistreated him because he was Jewish, but when asked why he felt this way could not articulate any reason why, stating that it was only “a feeling [he had]”).

PO Sledge (BR10) denied using any profane language towards § 87(2)(b) or making any remarks to him based upon his race or ethnicity. He handed § 87(2)(b) the summons, returned with PO Hearn to their vehicle, and along with the other officers left the scene. PO Sledge did not hear PO Hearn or any of the other officers use any profane language, or make any remarks to § 87(2)(b) based upon his race or ethnicity.

PO Sledge and PO Hearn returned to the 61st Street stationhouse to perform an administrative task unrelated to this incident. PO Sledge and PO Hearn were stationed in an office, which is approximately five feet away from the front desk, when PO Sledge saw § 87(2)(b) at the stationhouse speaking to the desk officer. PO Sledge did not recall the desk officer’s name and did not hear what § 87(2)(b) said to the officer, but assumed it was in regards to the earlier incident. PO Sledge did not speak or interact with § 87(2)(b). He also did not see PO Hearn speak or interact with § 87(2)(b) or the desk officer.

PO Hearn (BR11) § 87(2)(g) did not hear PO Sledge use any profanity or make any remarks to § 87(2)(b) based upon his race or ethnicity while they were in front of the synagogue.

PO Hearn confirmed that she saw § 87(2)(b) at the stationhouse, but denied interacting with him. § 87(2)(b) walked into the stationhouse just as PO Hearn and PO Sledge were getting ready to return to their assignment. PO Hearn assumed § 87(2)(b) was at the stationhouse to file a complaint against them. Thus, she informed the desk sergeant, whose name she did not recall, what had happened and then walked out of the stationhouse. As PO Hearn walked out of the stationhouse, she overheard § 87(2)(b) telling the telephone dispatch operator, whose name she did not recall, that the officers had scratched and hit his hands. PO Hearn walked out of the stationhouse and did not speak with § 87(2)(b). PO Hearn did not recall exactly where she was in relation to where § 87(2)(b) stood, but said she was never in close proximity to him. PO Hearn denied using any profane language or making any statement to § 87(2)(b) based upon his race or ethnicity.

Sgt. Helton (BR12) said after instructing PO Sledge to issue § 87(2)(b) the summons, he returned to his vehicle and left the scene. He did not hear PO Sledge or any of the other officers use profane language or make remarks to § 87(2)(b) based upon his race and ethnicity. Sgt. Helton was not present when § 87(2)(b) went to the stationhouse.

NYPD Patrol Guide Procedure 203-10 (BR17) states that officers are prohibited from using discourteous remarks that concern the race, ethnicity, religion, gender expression, sexual orientation or disability of a person.

§ 87(2)(g)

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§ 87(2)(g) [Redacted]
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It is therefore recommended that **Allegation C and D** be closed as **Unfounded**, and **Allegation E** as **Unsubstantiated**.

Squad: 4

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date